ELFONZE

Elfonze Technologies Pvt Ltd.

PoSH POLICY

PREVENTION OF SEXUAL HARASSMENT (POSH) AT ELFONZE

Applicable to Employees posted anywhere in India

Elfonze Technologies Pvt Ltd
GST: 29AAGCE3386A1ZP, CIN: U74910KA2021PTC144429
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Document Control

This section provides version control information for the PoSH policy document.

Version No.	Date	Description
2.0	12th December 2025	Prevention of Sexual Harassment (POSH) Policy at Elfonze Technologies Pvt Ltd

Authored By	Reviewed By	Approved By	Date of Approval
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1. Context

The PoSH Policy, titled Prevention of Sexual Harassment (POSH) at Workplace is in accordance with the provisions of The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 (hereafter referred to as the 'Act')

Elfonze Technologies believes that all its employees have the right to be treated with dignity, respect and provides a free, fair and congenial work atmosphere.

Harassment in any form disrupts lives, decreases productivity, and damages reputations and careers. It creates feelings of uneasiness, humiliation and discomfort and undermines the employment relationship.

This SOP has been formed to educate employees about the conduct that constitutes 'Sexual Harassment', and in the unlikely event of such an occurrence, the fair mechanism must be enabled for dealing with such misconduct. The guidelines and redressal mechanism outlined in the SOP are compliant with the Act. Though this Act aims to cover prevention, prohibition, and redressal of sexual harassment of women at workplace.

Elfonze Technologies strongly opposes any act of Sexual harassment that makes the work atmosphere hostile and impacts an employee's self-esteem.

2. Purpose

The purpose of this policy document is to provide a step-by-step guide on the definition of Prevention of Sexual Harassment (POSH) at Elfonze Technologies and the process to be followed.

3. Applicability

The policy document governs all Elfonze Technologies based Indian employees, including individuals coming to the workplace for employment or for any other purpose whatsoever included but not limited to visitors, vendors, contractual resources, secondees and applies to any alleged act of sexual harassment against persons at workplace, whether the incident has occurred during or beyond office hours.

4. Key definitions

a. **Sexual Harassment** (Directly or by implication): includes any one or more of the following unwelcome acts or behaviour namely:
   - Physical contact or advances
   - A demand or request for sexual favors
   - Making sexually colored remarks
   - Showing pornography
   - Any other unwelcome verbal or non-verbal conduct of sexual nature

b. **Complainant**: Means at the workplace, any person
   - Whether unemployed or not
   - Of any age
   - Who alleges through a written document to have been subjected to any act of sexual harassment by the respondent (A person against whom an aggrieved person has made a complaint). All complaints should be in writing. Any oral complaint should be documented in writing. IC or organization will help/have a complainant formalize his/her oral complaint in writing.

c. **Respondent:** The person alleged to have committed sexual harassment, is named in the complaint.

d. **Workplace includes:** Any place visited by the employee arising out of or during the course of employment including transportation provided by the employer for undertaking such journey

e. **Internal committee ("IC")** constitutes of members to receive and redress complaints on Sexual Harassment at the Workplace

   i. A committee called as "Internal committee" is constituted by the management to hear and redress complaints of sexual harassment.
   ii. The IC team is headed by a woman presiding office amongst the employees employed at a senior level at Elfonze Technologies.
   iii. One member is from a non-governmental organization or associates that deals with the issues relating to the cause of women. Also, half of the members of the IC are women.
   iv. Only the presiding members along with other officers of the IC will receive and hear complaints lodged by complaints of sexual harassment in the workplace and then an enquiry into the matter.
   v. The IC will also prepare and submit the report with findings and recommend the necessary disciplinary action that needs to be taken by the management team of Elfonze Technologies.
   vi. The IC is also responsible to ensure and promote a healthy work environment through successful implementation of the PoSH Policy.
   vii. The IC will review the effectiveness of the order and rules framed herein in curbing the acts of sexual harassment and suggest amendments to the Policy document if it may seem fit and proper.
   viii. The IC will provide fair, sensitive, and quick redressal.

f. **Quid pro Quo:** When a senior person or supervisor requests sexual favors from a subordinate in exchange for something work-related. If the senior person

implies or states the other employee has to go along with the requests or conduct if they are to get or keep their job, pay or other work benefits, this is sexual harassment.

Examples of" Quid pro quo" sexual harassment include:

i. An employee is promised a promotion, pay increase, or other benefits if he

ii. or she agrees to a sexual request.

iii. An employee is demoted or loses a job benefit for refusing to agree to a sexual request.

iv. An employee is told that his job will improve if he or she accepts the manager's sexual advances.

g. **Hostile work environment:** A hostile work environment occurs when unwelcome sexual words or conduct are so pervasive, that they unreasonably interfere with an employee's work. Persistent unwelcome sexual conduct can also can also create an intimidating, hostile, humiliating or sexually offensive work environment, one severe instance of unwelcome conduct may create a hostile environment, but usually, the unwelcome conduct is persistent and disruptive.

Conduct that could contribute to a hostile work environment includes:

i. Patting, touching, brushing up against a person's body.

ii. Sexual jokes & sexually oriented comments that demean someone due to their sex.

iii. Asking about a person's sexual activities, sexual fantasies or sexual preferences.

iv. Derogatory comments about a person's sex or sexual orientation.

v. Spreading gossip or rumors about someone's sex life.

vi. Whistling or making cat calls at someone.

vii. Repeated requests for a date or romantic intimacy after the person has refused.

viii. Disparaging remarks to a person about his or her gender or body.

ix. Whistling or making sexual gestures towards another person.

x. Displaying or transmitting explicit pictures, e-mails, SMS, voice mails or website materials.

xi. Sending compromising messages through mobile phones, SMS, e-mails etc.

xii. Use of abusive language or 'cuss' words.

h. **Employer**: A person responsible for management, supervision, and control of the workplace and will include 'vice president, general manager, chief HR' means a person employed at a workplace for any work.

   i. On a regular, temporary, ad-hoc or daily wage basis.

   ii. Either directly or through an agent including a contractor, with or, without the knowledge of principal employer.

   iii. Whether for remuneration or not working on a voluntary basis or otherwise.

   iv. Whether the terms of employment are express or implied and

   v. Include a co-worker, a contract worker, probationer, trainee and apprentice or called by any other such name.

i. **Reasonable person test**: It a standard way of determining if any conduct that has taken place falls under the definition of sexual harassment and takes the perspective of persons of the same background who serve as a comparative standard for determining the nature of offence.

5. Roles and Responsibilities

a. **Employee:** It is the responsibility of all to respect others and to not encourage

harassment. It can be done by:

i. Refusing to participate in any activities which constitute harassment
ii. Supporting the person to reject unwelcome behavior.
iii. Acting as a witness if the person being harassed decides to lodge a complaint.

b. **Manager:** The responsibilities of the managerial position refer to include the below w.r.t all employees within his/her sphere of influence.

i. The principle equal opportunities and fair treatment is provided to all employees irrespective of gender.
ii. Drive awareness and complete understanding with the employees so that they are informed on the progress of the deal with the harassment if it occurs.
iii. There is no act of retaliation/victimization within the team environment.
iv. Ensure all the employees complete the mandatory training.

c. **IC Members:**

i. Prevention, prohibition and redressal of the sexual harassment.
ii. Taking minutes of Quarterly Review meetings.
iii. Receive complaint.
iv. Recommend interim relief.
v. Summon parties to hearings/meetings.
vi. Transcribing the statements made to the IC.
vii. Conduct of proceedings during enquiry.
viii. Providing copies of statements by one party to another.
ix. Facilitate cross-examination.
x. Facilitating conciliation.
xi. Informing parties of their rights and responsibilities during any enquiry.
xii. Determination of compensation payable by guilty respondent, if applicable.

xiii. Preparing any enquiry report.

xiv. Assist the victim to file a police complaint if required.

xv. Ensure parties are made aware of the process and their rights and responsibilities within it.

xvi. Adhere to the principles of natural justice.

xvii. Be aware of the procedure to be followed: including the conciliation process, sharing copies with both parties, settlement of any inquiry and provide recommendations to employer redressal.

xviii. Preparation of the report after inquiry.

xix. Recommend action during the pendency of inquiry.

xx. Recommend action on outcomes – including when the status is proved, not proved, or malicious.

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Roles and Responsibilities of the Internal Committee (IC)

The Internal Committee (IC) under the POSH Act ensures a safe and respectful workplace for all employees.

1. Composition

- Headed by a **Presiding Officer (senior woman employee)**.
- Includes **at least two employee members** and **one external member** (from NGO/legal background).
- **50% of members must be women.**

2. Key Responsibilities

- **Prevent:** Create awareness through training, communication, and policy visibility.
- **Receive & Inquire:** Handle complaints confidentially, conduct unbiased investigations, and complete inquiries within 90 days.

- **Recommend:** Submit findings to the employer with suitable actions within 10 days of inquiry completion.
- **Protect:** Ensure no retaliation or victimization against the complainant or witnesses.

3. Conduct & Confidentiality

- Maintain fairness, empathy, and neutrality.
- Keep all proceedings and identities strictly confidential.
- Breach of confidentiality or misuse of authority will lead to disciplinary action.

4. Tenure

- IC members hold office for **three years** and may be re-nominated as needed.

6. No. of meetings during a year

The internal committee will meet at every instance of a complaint being made of sexual harassment. The committee preferably will meet once a quarter, in order to discuss and redefine the best practices and once at the end of a year to finalize the relevant annual reports to be submitted to the relevant authority.

As per the law, it is mandatory for the IC to prepare the below reports:

Annual reports of the calendar year are prepared by the presiding office which is to be submitted to the district officer in the month of January of the following year.

7. POSH Workflow

Which is aligned as per the law and will be followed at Elfonze is outlined as below:

A list of documents as per the sequence of events is given below (Note: the sequence the nature of the documents may change from case to case):

a. Copy of the complaint
b. proofs attached with the complaint
c. List of witnesses provided by the complainant
d. Notice issued by IC/LC to Respondent
e. Reply of respondent
f. proofs attached with the complaint
g. List of witnesses provided by respondent
h. Statements of complainant & respondent (all statements should be signed by parties)
i. Minutes of all the meetings in-seriatim
j. All notices of meetings in-seriatim
k. Any inter-office memo issued to management dale -wise
l. Statements & cross-examination of witnesses
m. Findings to be shared with parties
n. Representations submitted by the parties against the report
o. Acknowledgement of receipts
p. Final Inquiry Report (All members should sign the report)

8. IC Timelines to resolve the complaint

Sl. No	Action	Time Schedule
1	Complaint by complainant	Within three (3) months from the date of incident
2	Inform to the named perpetrator (Respondent) by IC/LC	Within seven (7) days from the date of receipt of the complaint
3	Respondent to file a reply	Within ten (10) days from the date of receipt of the Notice from IC/LC
4	Inquiry proceedings by IC/LC	To be completed within ninety (90) days
5	Submission of Inquiry Report by IC to management	Within ten (10) days from completion of inquiry. Copy of the report to be given to both the parties also.
6	Management to take action on the inquiry report	Within the next sixty (60) days from submission of the report to management
7	Appeal by either party	Within ninety (90) days from the date of submission of the inquiry report (recommendations)

9. Redressal Mechanism

The guidelines and redressal mechanism outlined in the Policy document is compliant with the Act. Outlining the below procedures under the SHWP Act:

a. **Filing of a complaint**

A complaint can be made by the complainant. It can also be recorded either by the complaint or on behalf of the complainant. The complainant files the complaint with the IC in writing to posh@elfonze.com

Anonymous complaints will not be acted upon by IC.

A complaint must be in written and 6 copies must be submitted to the IC within 3 months form the date of the incident and in case of series of incidents, within 3 months from date of last incident.

Where the complaint / aggrieved person is unable to make a complaint, a complaint may be filed by aggrieved person post 3 months from date of last incident. In case of delay, reasons to be stated and IC will look into it and decide.

- *Due to physical incapacity* – Relative or friend or co-worker or a special educator of the National/State Commission for Women or any person who has the knowledge of incident with the written consent of the complainant person.
- *Due to mental incapacity* – Relative or friend or special educator or a qualified psychologist or guardian or any person who has the knowledge of the incident jointly with any of the above.
- *Due to any other reason* – Any person who has the knowledge of the incident with the written consent of the complainant / aggrieved person.
- *Due to death* – A legal heir in case of death.

i. At the time of filing the complaint, the complainant should submit six copies of the complaint, supporting documents and names and addresses of the witnesses to the IC.

ii. Once the complaint is received, it will be kept strictly confidential to protect the identity of the complainant. The respondent will be informed that a complaint has been filed against him/her and one of the copies of the complaint will be sent to the respondent within 7 working days, The respondent will also be informed that any unfair acts of retaliation or unethical action would not be tolerated.

iii. Once the respondent receives a copy of the complaint. He/she should submit a reply to the complaint along with his/her list of documents and names and addresses of the witnesses within ten working days of receiving the complaint.

iv. The IC, receiving the complaint, will first determine the Sexual Harassment case and on the choice of the complainant to propose/attempt settlement through conciliation between the complainant and the respondent, provided, the settlement is not monetary in nature. If the matter can be settled through conciliation, the IC will record it and carry out no further inquiry.

v. If the Settlement through conciliation chosen by the complainant and not agreed upon by the respondent, is not possible, the IC will initiate an inquiry to investigate the matter and arrive at a conclusion. The inquiry will be completed within a period of ninety days at least three members will be present while the inquiry is being conducted.

vi. The IC will ensure that principles of natural justice are followed while conducting the inquiry, which is both parties being heard and allowed to produce and any other form of evidence that can help their case. The respondent knowing the complaint made out against him/her, the respondent being given a fair chance to counter them, and that the IC does not receive evidence or hear representations from any party without

the other knowledge.

vii. If the complainant or respondent fails to present himself or herself for three consecutive hearings convened by the presenting officer without showing sufficient cause for the same, the IC can terminate the inquiry proceedings or give an ex-parte decision. However, this termination of inquiry or ex-parte order cannot be passed without giving a notice of fifteen days to both the complainant and the respondent.

viii. During the inquiry, the IC may recommend the employer to transfer the aggrieved employee to a different workplace or grant leave to the aggrieved employee for a period of three months, pending inquiry.

ix. The parties cannot be represented by a legal practitioner at any stage of the proceedings before the IC.

x. If the complaint is severe or of a pervasive nature, appropriate disciplinary action leading to immediate suspension (without pay) will be taken.

xi. No adverse action will be taken against any employee who in good faith reports any harassment issue or assists in investigation of the matter.

xii. The complainant is free to file a case with local law enforcement agency and IC shall facilitate it.

b. **Consensual Relationship at Work:**

1. Although consensual relationship between persons of different power levels do not constitute sexual harassment, they raise serious concerns and may lead to difficulties. Such relationships may give rise to claims to sexual harassment in one or more of the following cases:

   i. Third parties are adversely affected in their employment opportunities

because of a consensual relationship between others creating bias.

ii. A consensual relationship creates a hostile, offensive or intimidating work or learning environment for third parties.

iii. A consensual relationship ends, but one of the parties continues to pursue the relationship after being noticed repeatedly that such conduct is no longer welcome. According to legal precedent, mutual consent may not be an adequate or acceptable defense against a charge of sexual harassment.

2. In a relationship that involves a power differential, the person in power must do the following:

   i. Distance himself/herself from any decision that may reward or penalize the other individual.

   ii. Disclose the nature of the relationship to the appropriate administrative supervisor, manager/HR who then will take steps to ensure equitable/fair treatment for all concerns.

c. **Reasonable Person Test:**

The "reasonable person test" is a standard to be applied when considering offences:

   i. Uttering threats

   ii. Reasonable Apprehension of bias

   iii. Physical contact or advances

   iv. Any other unwelcome physical, verbal, or non-verbal conduct of a sexual nature A reasonable person is one who is:

      a. Reasonable, informed, practical and realistic

      b. Not an overly sensitive person, but right-minded

c. Dispassionate and fully apprised of the case

I. A reasonable person standard includes consideration of the perspective of the persons of the same race, color, religion, gender, national origin, age, or disability as the harassment victim.
Example: In case of a female employee raising the complaint, the test should be conducted with a set of women and not men

II. Harassing conduct must be objectively viewed as creating a hostile work environment to be unlawful, the subjective perception of the harassed employee is still significant. If the employee does not perceive the work environment to be hostile because of that conduct, the conduct is not unlawful behaviour.

III. A reasonable person standard also should be applied to be more basic determination of whether challenged conduct is of a sexual nature.

d. **Completion of the inquiry** – all complaints submitted to the IC must be enquired and the respective recommendations finalized by the IC within 90 days of the receipt of the complaint.

e. **Interim relief**- Complainant can be granted interim relief pending inquiry in the form of transfer to another team, paid leave up to 3 months or such relief to ensure that both the parties do not have to interact with each other during the course of investigation.

f. **Submission of report** – Once the inquiry is complete, the IC must prepare a report and submit to the complainant, respondent and Leadership team within 10 days from completion of inquiry.

i. The IC, based on Its findings, will submit a report to the employer or the

management team within 10 days from the conclusion of the inquiry. If the IC finds that the allegations have not been proved to be true, it can recommend that no action be taken against the employee.

ii. If the IC finds that the allegations have been proven to be true, the committee can take appropriate action for sexual harassment as misconduct in accordance with provisions of the applicable service rules of the Respondent or recommend the management to take any other necessary disciplinary action.

iii. If the applicable service rules do not exist, and the IC concludes that the allegation against the Respondent has been proven, the IC shall recommend to the employer to take any action, which can include any of the following and not limited to:

   a. A written apology
   b. Warning
   c. Reprimand or censure
   d. Withholding of promotion
   e. Withholding of pay rise or increments
   f. Terminating the Respondent from service or making him/her undergo a counselling session

iv. The IC can also award compensation from the respondent to the complainant. There is no cap on the compensation that can be awarded, and the factors that will be considered include mental trauma, suffering and emotional distress, the loss of career opportunities and any medical expenses the employee incurs for physical and/ or psychiatric treatment.

v. The income and financial status of the Respondent may also be considered.

vi. The management team will act on the recommendations of the IC within 60 days from the submission of the inquiry report.

g. **Rehabilitation** – On completion of a particular case there are times when parties involved in the case including Complainant, Respondent and Witnesses would need to be rehabilitated. It could be physical rehabilitation or mental rehabilitation. Listed below are outcomes as a way of rehabilitation:

   i. Provide counselling services
   ii. Transfer to a different team, location, physical space (different floor), different business unit
   iii. Disengaging their work relation (they should not be working on a same project or reporting to each other)
   iv. Presiding Officer/IC members having a scheduled connect to check on their status

Note: All Elfonze Technologies employees who are working at Client locations shall be covered under the Client's PoSH Policy as well as Elfonze PoSH Policy.

10. Third-Party Redressal

Scenario 1:

Elfonze Employee raises complaint against client/vendor associate who is either at our site or if our employee is working at client/vendor site:

i. Raise a complaint with the client IC
ii. The client/vendor IC is to conduct the proceedings as per their SOP and bring the case to closure
iii. An IC member from Elfonze can be part of the enquiry session conducted by the client /vendor IC
iv. In case no action is taken by the client/vendor, IC will help the complainant file an FIR with the police

Scenario 2:

Client/vendor associate raises complaint against Elfonze employee who is working at our site or if our employee is working at the client/vendor site:

i. Raise a complaint with our IC

ii. IC to investigate the complaint and bring the case to closure

iii. Vendor point of contact (POC) can be part of the IC enquiry sessions

Scenario 3:

Client/Vendor associate raises complaint against client/vendor, both working at our site:

i. The reporting function of Elfonze is to provide support to file the complaint with the primary employer who will then raise the case with their IC
ii. Support to be provided to the client/vendor IC in terms of providing evidence and witnesses
iii. Disengage both parties till the investigation is in progress

11. False or malicious complaints

This guideline document has evolved as a tool to ensure that in the interest of justice and fair play, our employees have a forum to approach in the event of instances of sexual harassment. However, if on investigation of the IC it is revealed that the complaint was made with malicious intent and/or with the motive of maligning the concerned individual/ tarnishing his/her image in the company and to settle personal/professional scores, strict action will be taken against the complainant. However, the inability to substantiate a complaint will not attract action.

During the inquiry process as laid out above, if the IC concludes on the below:

i. That the allegation against the respondent is malicious
ii. That the complainant has made a false complaint or
iii. The complainant has produced any forged/misleading document

Then the IC may recommend to HR to act against the person who has made the false complaint. The recommendations can include the following:

i. Written apology, warning
ii. Withholding of promotion
iii. Withholding of pay rise or increments
iv. Termination
v. Undergo counselling
vi. Deducting sum from salary

12. Appeal

The parties to the inquiry can prefer an appeal against the decision of the IC to a Court or Local Committee within 90 days from the date the IC has submitted its recommendations.

13. Composition of the Internal Committee (IC)

An IC constituted by the employer should have a minimum of FOUR (4) members including an external member. One-half of the IC members should be women.

1. **Presiding Officer**: The Presiding Officer is the chairperson of the Internal Committee and should mandatorily be a female employee holding a senior position.
2. **Employee Members:** Two or more members must be nominated as member of

IC, preferably with significant legal knowledge or has worked for a social cause or women safety.

3. **External Member:** There should also be an external member in the IC who should be related to the organization only for the working of IC. the person should have a minimum of 5 years of experience as a social worker working towards women empowerment and addressing workplace sexual harassment.

   During the inquiry, a quorum of 3 members is to be maintained with the Presiding Officer's presence being mandatory.

14. IC Training

Annual training is crucial for the empowerment of the IC. Regular training is organized for IC members, and it must be arranged by the Learning & Development team.

15. IC members removal

The term of an IC member is three years from the date of appointment after which she/he must be replaced. However, an IC member can be removed from the position within three years in case of:

i. Violation of section 16 of the Act – Breach of confidentiality
ii. Convicted of offence or inquiry into offence under any law is pending against him/her
iii. Found guilty in disciplinary proceedings or disciplinary proceedings pending against him/her
iv. Has abused his/her position to render continuance in office prejudicial to the public interest.

In this case, the member must resign, and the position must be filled by

someone who meets the qualifications for the position.

16. Complaint Mechanism at Elfonze

a. **Reporting Harassment:**

i. If one believes one is the victim of sexual harassment, one is encouraged to and has the responsibility to seek help

ii. Whatever an employee experiences or observes, sexual harassment should be reported immediately to the POSH committee and the complaint to be recorded in writing

b. **Confidentiality:**

i. Charges of harassment will be kept confidential. They will be only be discussed within the committee, and with those who need to be included as part of the investigation process

ii. All persons interviewed in the investigation will be asked to keep the matter confidential

iii. It shall be the duty of the IC to ensure that all complaints lodged shall be confidential. After the initiation of the enquiry, such confidentiality shall be continued as far as is possible. Neither the name of the complainant or the Respondent nor their identity shall be revealed to the press/media or any other person whilst reporting any proceedings, findings, or recommendations.

c. **ZERO Tolerance**

Sexual harassment is not just a violation of human rights in the workplace, it also damages productivity and professional relationships. It is a serious manifestation of sex discrimination at the workplace and a violation of human rights. It undermines equality, calling into question the integrity, dignity,

physical and psychological well-being of workers. Thus, Elfonze addresses sexual harassment with zero tolerance, regardless of the high status of the perpetrator, to ensure a safe workplace for our employees and the healthy growth of our company.

d. **Disciplinary Action:**

The IC may initiate any one or more of the following exhaustive lists of actions based on the gravity of the case:

i. Verbal warning
ii. Formal apology
iii. Counselling to both/either the complainant/respondent to ensure appropriate behavior is maintained in the workplace and making them aware of the legal consequences of their behavior
iv. Rehabilitation/transfer to another team to avoid contact between the complainant and respondent for a conducive work environment
v. Written warning to the Respondent and a copy of it maintained in the employee's file.
vi. Change of work assignment/transfer.
vii. Withholding of increment or promotion.
viii. To deduct from the salary or wages of the Respondent such sum as it may consider appropriate to be paid to the Complainant.
ix. Financial penalty (in accordance with mental & physical trauma, loss of career opportunity, medical expenses) in lump sum or in instalments.
x. Suspension or termination of services of the employee found guilty of the offence.

e. **Documentation:**

Investigations will be required to be thoroughly documented and

confidentiality must be maintained throughout to complete proceedings. The IC will prepare a final report that contains the following documents:

i. A description of the different aspects of the complaints
ii. A description of the process followed
iii. A description of the background information and documents that support or refute each aspect of the complaint
iv. An analysis of the information obtained
v. Findings as stated above
vi. Recommendations

17. Implementation of the Policy Document

IC team and HR department have the responsibility for ensuring the maintenance, review and update of the PoSH Policy Document in conjunction with the Leadership Team

18. Revision to the Policy Document

The IC team, HR head and Leadership team are the PoSH Policy Document approvers and have the authority to approve any document revisions as and when required.

19. PoSH Training & Purpose

In accordance with the provisions od act, it is mandated for every employer to conduct training for the employees in order to provide a safe and gender-neutral work environment.

a. Employees (New joiners/Active):

i. To provide a safe and gender-neutral work environment.

ii. To familiarize employees with legal compliances as well as individual responsibilities at the act in accordance to the law.

iii. To familiarize on process of raising complaints and keep them informed on escalation matrix.

b. Internal Committee (IC):

i. To meet compliance requirements as mandated by the law.

ii. To train the IC members; On how to handle conflicts and resolve them.

20. Mandate for the new joiners and active employees

PoSH training to be mandatorily undertaken by:

i. Active employees – Annual refresher session to be undertaken by the month Aug of every year.

ii. New joiners within thirty days of their date of joining.

iii. All the new joiners to undergo PoSH awareness sessions as part of their induction workshop. (Induction workshop to be scheduled for all new joiners preferably within thirty days from their date of joining).

21. Training Framework

Following schedules will be followed as far as practicable depending upon the need at a certain point in time.

ITEM	MODE	FREQUENCY	EMPLOYEE COVERAGE	RESPONSIBILITY
Refresher	Classroom or Virtual	Annual for existing employees	All employees	Team managers / Org Development Specialist
Induction	Classroom or Virtual	Preferably within 30 days from DOJ.	All new joiners	Org Development Specialist/ HR

22. Verification and validation

The Internal Committee (IC) Presiding Officer shall ensure that all complaint records are accurately maintained and included in the Annual Report and Quarterly Report, which must be submitted to the organizations' HR and Operations departments in accordance with the requirements of the Prevention of Sexual Harassment (POSH) Act and applicable rules.

23. Annexure I

IC members (PoSH & Ethics Committee)

Internal committee: The Internal committee consists of below-listed members to receive and redress complaints on sexual harassment at the workplace:

Member	Role	Mail ID	Contact No.
1. Gowri Sivakumar	Presiding Officer	posh@elfonze.com	+91 98457 17936
2. Arunima S	Internal Member	posh@elfonze.com	+91 99804 89649
3. Gunashekar S	Internal Member	posh@elfonze.com	+91 98450 77837
4. Dhatri R	Internal Member	posh@elfonze.com	+91 90877 09695
5. Dr Vishnu	External Member	posh@elfonze.com	+91 98452 11970

The members of the committee may change over the period and the same shall be available on policy document.

Delivery Centre PoSH Representatives

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24. Annexure II

Frequently Asked Questions

Q1: Does the PoSH Policy apply to WFH scenarios?

Ans: The Prevention of Sexual Harassment (PoSH) at Elfonze is applicable as per the SHWP Act. The term workplace is defined in the SHWP act includes "any place visited by the employee arising out of or during the course of employment". It includes office building, parking lot, cafeteria, company off site and guest house. A work-related email chain, office group chat and our virtual desks (Including home) are included in the workplace. Hence in work-from-home setup, the employee's home is included in the definition of workplace for the purpose of this act.

Q 2: What forms can virtual sexual harassment take?

Ans: Virtually, sexual harassment may take up the following forms (But do note that this list is not exhaustive).

i. A demand or request for sexual favors
ii. Making sexually colored remarks
iii. Showing pornography.
iv. Any other unwelcome verbal or nonverbal conduct of sexual nature.
v. Making sexually suggestive remarks or jokes during work calls, or on text

chats.

vi. Inappropriate questions, suggestions or remarks about a persons sex life.

vii. Persistently sending friend requests unsolicited messages.

viii. Online stalking.

Thus, any conduct or words with sexual connotations that:

a. interferes with an employee's ability to work, or

b. creates an uncomfortable atmosphere while working remotely can also be considered sexual harassment.

Q 3: If the interns, trainees, contractual or temporary employees have never visited the office because they joined during lockdown, are they still covered under the act?

Ans: Yes, all interns, trainees, contractual or temporary employees are covered under the POSH Act even if the employee in question is remotely working for the company irrespective of the fact that they have never physically visited the office premises.

Q 4: Is it valid if the internal committee receives the complaint online?

Ans: Yes, the complaint sent over the mail to the IC is valid. The IC will proceed on enquiry electronically via virtual hearings.

Q 5: My colleagues made me feel uncomfortable with his sexual remarks on my social media page. How can I deal with this?

Ans: The comment on sexual remarks made that is unwanted constitutes a verbal form of sexual harassment. Since the notion of workplace as in recent times and an expensive interpretation, though the comment was made on social media, it would still be considered a workplace. This is because such an incident would

create a hostile work environment for the aggrieved. Hence, you can report this incident to the IC of the company.

Q 6: Is it necessary that the sexual remarks made should be made to the persons directly for it to be sexual harassment?

Ans: No, indirect sexual remarks made to others about a person can create a hostile work environment for that person. This is a recognized form of sexual harassment and that person can approach the IC.

Q 7: What are some examples of a hostile work environment in a WFH setup?

Ans: The WFH has made virtual access to our colleagues a norm. Asking to be on video or call at odd hours, asking personal questions, commenting on appearances, not dressing appropriately for virtual/video meetings are some of the examples of a hostile work environment.

Q 8: My colleagues saw me on a dating app and have been sharing screenshots with our mutual co-worker. Is this sexual harassment?

Ans: Yes, this is sexual harassment. Taking screenshots and circulating personal info or pictures of a person, without their consent is an act of sexual harassment. This is a breach of privacy as well. In such case, the aggrieved can approach the IC for support and redressal.

Q 9: My senior says that WFH sexual harassment is not such a threat since we are not at physical risk, is this true?

Ans: Though there is no physical risk, the virtual world provides a well behind which acts of sexual harassment can take place which can have deprecation and cause mental trauma. Sexual harassment can be verbal, visual, and psychological, not just physical. If the woman/person feels sexually harassed they can approach the IC for filing the complaint of the incident.

Q 10: Should the communication be necessarily on workplace channels for it to constitute Prevention Of Sexual Harassment (PoSH) at Elfonze?

Ans: The concept of workplace under the law virtual workplace, including cell phones and laptops. Therefore, communication via electronic media, texts, voice message, and emails etc. are all included within its purview.

Q 11: "Adjust your camera, I can't see you properly", "Go behind", "let me see you", "You look better with your hair down", these are some of the things my manger has said to me on out one on one virtual meetings, I don't know if he intends wrong, but it has made me uncomfortable, what can I do?

Ans: The above statements may be instances of sexual harassment. Any comment made with sexual connotations, when unwanted, amounts to sexual harassment. Approach the IC for support and guidance.

Q 12: I am a woman and my boss continuously yells at me, is late to meetings, provides no follow-through, demands too much work and/or is unreasonable. Is this sexual harassment??

Ans: Not usually. While these are certainly examples of bad management styles which need to be addressed by HR personnel, they do not constitute sexual harassment unless they are unwelcome sexual comments or conduct.

Q 13: My colleague sent me some dirty jokes and memes, and I expressed my disgust to him. He deleted those messages and denied ever sending me anything. I wish to file a complaint. What should I do?

Ans: If you wish to file a complaint about this, please do so and include the details of the deletion. Just as a precautionary measure, take a screenshot of the chat window. Even if it just reflects that a message was deleted, that itself helps in building your case. Don't hesitate to complain just because you may have no

evidence. However, if it is possible to talk things out with your colleague and establish clear boundaries, do consider that as well.